

MS.5 Forms & Documents Index

Every document you will be handed or asked for, what it is, when it appears, and where it comes from — plus the buildings Mississippi exempts outright, and the affidavits that unlock them.

Before you use this document

This is a process reference, not legal advice. Mississippi is the hardest state in the country to write a permit guide for, because the answer genuinely changes at the county line: some counties enforce a building code and inspect your house, and others enforce none at all. Confirm every item with the office that will actually issue your permit before you rely on it. Only the wastewater forms have statewide numbers. Mississippi has no statewide building permit application, so local documents are described by what they do.

STATE-LEVEL DOCUMENTS

Documents with a statewide identity

Document	What it is	Where from
Statement of Intent MSDH Form 908	Your notice of intent for an onsite wastewater system. Filed with the legal description, a plot plan and the fee. Required before you construct or place the residence	MSDH, Division of On-site Wastewater — msdh.ms.gov
Site soil evaluation	The evaluation of your soil, carried out by the local environmentalist, that determines which systems your lot will accept. Can move the house on the lot, which is why it comes early	MSDH, after Form 908
Permit / recommendation	Issued to you after the evaluation. Lists the system options recommended for your property. This is what your water supplier asks to see before setting a meter	MSDH
Installation affidavit	Signed by your certified installer after the system goes in, and filed with the Department. Without it there is no final approval	Certified installer → MSDH
Maintenance affidavit	Signed by you , and required only for an advanced treatment system. Goes with the continuing maintenance agreement the statute requires in perpetuity	You → MSDH
Final approval	The Department's sign-off once it holds the affidavits. Ask for it by name and keep it — your lender, insurer and eventual buyer will all want it	MSDH

Documents with a statewide identity

Document	What it is	Where from
Two-acre exemption affidavit	Signed by the person who installed the system, attesting that all wastewater is contained on the tract and no watercourse is impacted. Only relevant on two acres or more — and only if no county ordinance, water association or lender requires final approval anyway	Installer → MSDH
Contractor license verification	Not a form you file — a check you run, on every electrical, plumbing, mechanical and HVAC contractor, no matter how small the job. Print or screenshot the result and date it	State Board of Contractors — msboc.us

LOCAL DOCUMENTS — NAMES VARY, FUNCTIONS DO NOT

Documents whose name depends on your county

Document	What it is
Building permit application	Exists only where a code is enforced. No statewide form. Expect to supply plans, a site plan and your septic paperwork
Evidence of exemption	Whatever your building official accepts to satisfy § 73-59-17 — a recorded deed plus a signed statement, a local homeowner affidavit, or a declaration on the application itself. Ask what form it takes before you drive there
Site plan / plot plan	House, setbacks, driveway, well and septic field. The same drawing usually serves the health department and the building office, so draw it once and well
Recorded deed	Proof you own the property, which is what the licensing exemption is built on. Chancery clerk
Floodplain development permit	Required in a mapped flood hazard area in a community that takes part in the National Flood Insurance Program — and the construction-code exemptions expressly do not reach it
Elevation certificate	Prepared by a surveyor or engineer where you build in a flood hazard area. Drives your flood insurance rating as well as compliance
Driveway / culvert permit	County road department for a county road; MDOT for a numbered state highway. Settle the culvert size before you grade
E-911 address assignment	The new address for the dwelling. Utilities and lenders both ask for it, and it takes longer than you expect
Termite treatment certificate	From the pest control operator. Mississippi is wholly within the region the code marks "very heavy" for termites, and buyers and lenders ask for this years later

Documents whose name depends on your county

Document	What it is
Utility service applications	Temporary construction power, permanent service, and water membership. Ask your electric supplier early what release it needs before it will energize
Certificate of occupancy	Issued at the end where a building code is enforced. Where no code is enforced there is no certificate of occupancy — which is why the private inspection reports in MS.3 matter so much for resale

WHAT MISSISSIPPI EXEMPTS OUTRIGHT — AND THE AFFIDAVITS

Even where a construction code is fully enforced, the statute carves out several categories of structure. Two of them are unlocked by an affidavit most owners never learn about, and one of those has to be filed **before** you build.

Structures outside the state construction code

Category	Scope	Affidavit required?
Farm structures	A structure on a farm, other than a residence or something attached to it — barns, sheds, poultry houses, but not public livestock areas. A building that later converts to another use loses the exemption	Yes — before you build. An affidavit filed with the county or municipal official responsible for enforcing the code, stating the purpose or intended use
Hunting and fishing camps	A private unattached outdoor recreational structure. Must be in an unincorporated area of the county, within or near land where hunting or fishing may legally take place	Yes. A signed affidavit sworn by the owner and filed with the board of supervisors
Manufactured housing	Housing built to the Federal Manufactured Home Construction and Safety Standards Act — governed by the federal standard rather than the local code	No affidavit in the code exemption
Salvage and green timber (Pearl River County only)	Pearl River County and its municipalities may not enforce code provisions barring, or requiring permit approval for, the use of salvage lumber or green cut timber — provided it is for personal use and not for sale	No affidavit named
Industrial and pipeline facilities	Manufacturing, utilities, telecommunications, pipelines and gas processing, by federal industry classification. Not relevant to a house, listed so you recognize it in the statute	—

The limit on every one of these exemptions

None of them reaches flood rules. Both exemption sections close with the same sentence: *"The provisions of this section shall not apply to any floodplain management ordinances or regulations necessary for eligibility for the National Flood Insurance Program."* A barn, a hunting camp, or a manufactured home in a mapped flood hazard area is still subject to the floodplain ordinance.

And note what the farm-structure exemption does **not** do: it expressly *"does not affect the authority of the governing body of a county or municipality to issue building permits before an affidavit ... is filed."* File the affidavit first, not after somebody asks.

WHAT TO KEEP, AND FOR HOW LONG

Keep everything in this binder for as long as you own the house, and hand it to the buyer when you sell. An owner-built Mississippi house with a complete paper trail is an ordinary transaction; the same house without one is a negotiation. The documents that matter most a decade later are the ones nobody thinks to keep: the health department's final approval, the termite certificate, the trade contractors' license verifications, and — if you built where no code applied — your private inspection reports and dated photographs.

Your permanent file

	Item	Date	Where kept
☐	Health department final approval, or the two-acre exemption paperwork Filed: _____		
☐	Septic permit or recommendation, and the as-built location of the field Filed: _____		
☐	Building permit and certificate of occupancy, if your parcel had them Filed: _____		
☐	Termite treatment certificate Filed: _____		
☐	Every trade contractor's license verification, dated Filed: _____		
☐	Elevation certificate and flood documentation, if applicable Filed: _____		

Your permanent file

	Item	Date	Where kept
☐	Private inspection reports and milestone photographs Filed: _____		
☐	The clerk's written confirmation of your parcel's code status — the single most useful piece of paper for a no-code build Filed: _____		

Sources — every Mississippi claim in this document (verified August 2026)

What this document states	Authority
Farm structures are exempt only if the owner files an affidavit before constructing, stating the purpose or intended use; the exemption does not affect the authority to issue permits before it is filed	§ 17-2-7(1), (3), (4)
Hunting and fishing camps are exempt on a sworn affidavit filed with the board of supervisors, and must be in an unincorporated area	§ 17-2-9(3)
Manufactured housing built to the federal standard, and Pearl River County salvage lumber and green cut timber for personal use	§ 17-2-9(4), (5)
No construction-code exemption reaches NFIP floodplain ordinances	§ 17-2-7(5); § 17-2-9(6)
The wastewater documents: notice of intent, department approval, the two-acre exemption affidavit, and the perpetual maintenance agreement for advanced systems	§ 41-67-5; § 41-67-6(7); § 41-67-7(1), (5)
The building official must be furnished evidence of license or exemption before issuing a permit	§ 73-59-17

Every Mississippi Code section cited above is free to read. The Legislature's official copy is at **legislature.ms.gov** → Mississippi Code (Title 73, Chapter 59 is residential builders; Title 17, Chapter 2 is building codes; Title 41, Chapter 67 is onsite wastewater). The State Board of Contractors publishes the whole residential law and its rules as one booklet at **msboc.us** → Laws, and the Department of Health publishes the wastewater law at **msdh.ms.gov**. Enacted bills — which is how the dates and opt-out windows in this kit were checked — are at **billstatus.ls.state.ms.us**. All statute text quoted in this kit was read at those sources and verified August 2026.